

Court No. - 32

Case :- WRIT - C No. - 1461 of 2020

Petitioner :- Sanjay Agarwal

Respondent :- Dakshinanchal Vidyut Vitran
Nigam Limited And Another

Counsel for Petitioner :- Ashwani Kumar
Mishra

Counsel for Respondent :- Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari after calling record of the case and to quash the impugned recovery certificate dated 03.10.2018 (Annexure No. 12 to the writ petition) issued by respondent Executive Engineer.

(ii) Issue a writ, order or direction in the nature of mandamus commanding respondent Executive Engineer to permanently disconnected certificate to the petitioner with regard to his Electricity Connection No. 2013/29."

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department and perused the record.

Learned counsel for the petitioner has stated that the application filed by the petitioner under Clause 4.38 of the U.P. Electricity Supply Code, 2005 for permanent disconnection of his electricity is pending before the respondent authority and no order has yet been passed in the matter and the recovery certificate has been issued against him.

Considering the facts and circumstances of the case, we direct the respondent no. 2- Executive Engineer, Electricity Distribution Division-II, Hathras to pass an appropriate order on the application of the petitioner for permanent disconnection of his electricity within a period of four weeks from the date of receipt of certified copy of this order.

For the period of five weeks from today, no coercive action shall be taken against the petitioner.

Order Date :- 17.1.2020

Arun